



POLICE DEPARTMENT

October 27, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202405203 (Incident Date: May 17, 2024) regarding Sergeant Michelle Giglio,
Tax No. 954862 (PODS Case No. C-035255)

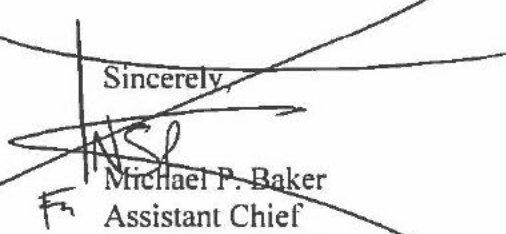
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Michelle Giglio and has determined that her actions do not warrant disciplinary action.

In this case, the Police Commissioner finds that the actions of Sergeant Giglio were within Department guidelines and the law. New York Courts have held that police officers have the authority to place members of the public into custody and remove them to a police facility when safety concerns or other justifiable reasons warrant such removal. Sergeant Giglio explained that due to the attempted flight, she believed the danger involved in this traffic stop was elevated, and therefore, it was necessary to place the complainant in custody. Sergeant Giglio directed the complainant to be transported to the precinct to be issued the summons at the precinct. Based on the totality of the circumstances, Sergeant Giglio's actions were reasonable, since she had the required legal authority to do so.

Therefore, based on the foregoing, Sergeant Giglio will receive no disciplinary action for the sole allegation.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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